

P O R T E R | S C O T T

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Attorneys for Defendants,

CSAA INSURANCE EXCHANGE, CARBONE,

SMITH & KOYAMA, AND MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631801

Plaintiff,

v.

**[PROPOSED] ORDER SUSTAINING
DEFENDANTS' DEMURRER TO
PLAINTIFF'S FIRST AMENDED
COMPLAINT**

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

DATE: MAY 12, 2026

TIME: 9:00 A.M.

DEPT: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 Defendants CSAA INSURANCE EXCHANGE, CARBONE, SMITH & KOYAMA, AND
2 MICHAEL R. CHAMBERS (“Defendants”) Demurrer to Plaintiff’s First Amended Complaint
3 (“FAC”) came for hearing on May 11, 2026, in the above-referenced Court.
4 _____ appeared as counsel for Defendants and
5 _____ appeared as counsel for Plaintiff. Having considered Defendants’
6 Demurrer to Plaintiff’s Complaint, and good cause appearing therefore,

7 **IT IS HEREBY ORDERED THAT** Defendants’ Demurrer to Plaintiff’s First Amended
8 Complaint is sustained without leave to amend as to the below causes of action as follows:

- 9 1. As to the sole cause of action, the FAC improperly targets protected litigation
10 conduct under Civil Code § 47(b) and Code Civ. Proc. § 425.16 and is therefore
11 barred as a matter of law.
- 12 2. As to the sole cause of action, the requisite statute of limitations precludes the claim.
13 (Code of Civil Procedure § 473(b).)
- 14 3. As to the sole cause of action, Plaintiff lacks standing to sue these demurring
15 Defendants.
- 16 4. As to the sole cause of action, this Court has no jurisdiction of the subject of the
17 cause of action alleged in the pleading. (Code of Civ. Proc., § 430.10, subd.(a).)
- 18 5. As to the sole cause of action, there is another action pending between the same
19 parties on the same cause of action. (Code of Civ. Proc., § 430.10, subd.(b).)
- 20 6. As to the sole cause of action, there is a defect or misjoinder of parties. (Code of Civ.
21 Proc., § 430.10, subd.(d).)
- 22 7. As to the sole cause of action, the pleading fails to allege facts sufficient to constitute
23 any cause of action against Defendants. (Code of Civ. Proc., § 430.10, subd.(e).)
- 24 8. As to the sole cause of action, the pleading is uncertain (Code of Civ. Proc., § 430.10,
25 subd.(f).)

26 **IT IS SO ORDERED.**

27 Dated: _____
28

JUDGE OF THE SUPERIOR COURT

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 13, 2026, I served the following document: **[PROPOSED] ORDER**
7 **SUSTAINING DEFENDANTS' DEMURRER TO PLAINTIFF'S FIRST AMENDED**
8 **COMPLAINT.**

9 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served 10 the above referenced document(s) by registered or certified mail, return receipt requested, with the United 11 States Postal Service, in a sealed envelope with postage fully prepaid.
12	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed 13 below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's 14 office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being 15 served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning 16 and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the 17 party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
18	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
19	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

20 Addressed as follows:

21 **PLAINTIFF, IN PRO PER**

22 Franciscus Dylan Rosario
23 7624 Melody Drive
24 Rohnert Park, CA 94928
25 soltrinox@gmail.com

26 I declare under penalty of perjury under the laws of the State of California that the foregoing
27 is true and correct. Executed on Sacramento, California on April 13, 2026.

28 **Monique Schubert**
Monique Schubert